

STATE OF MAINE

- ☒ UNIFIED CRIMINAL DOCKET
☐ SUPERIOR COURT
☐ DISTRICT COURT

County: Penobscot
Location: Bangor
Docket No: PENCD-CR-2018-03023

KEITH A. KING

Petitioner (*Print full name as it appears on Criminal Judgment*)

Date of Birth: 07/18/1983

v.

**PETITION FOR
POST-CONVICTION REVIEW**

STATE OF MAINE

I seek a review of the following Criminal Judgment [15 M.R.S. § 2121(1)] or post-sentencing proceeding [15 M.R.S. § 2121(2)].

A. TRIAL COURT INFORMATION

- My case was filed in the following court:
☒ Superior Court/Unified Criminal Docket in Penobscot (County)
☐ District Court in _____ (Town or City)
- The Docket Number of my case is: PENCD-CR-2018-03023
- The date of the Criminal Judgment in my case is: September 20, 2021
- The presiding Judge or Justice in my case was: [ask clerk: (207) 561-2300]
- This is a list of the crime(s) for which I was charged in my case and my plea to each charge:
(For example: Charge = Theft; and Plea = Not Guilty):

Charge(s)	Plea(s)
<u>Unlawful Poss. Scheduled Drugs (heroin, 200mg+, Cl. C)</u>	<u>Nolo Contendere</u>
<u>Unlawful Poss. Scheduled Drugs (cocaine base, 2g+, Cl. C)</u>	<u>Nolo Contendere</u>
<u>Aggravated Trafficking w/ Firearm x3 (Cl. A) — DISMISSED</u>	<u>Dismissed</u>

- I was convicted of the following charges and given the following sentence(s) in my case:

Charge(s)	Sentence(s)
(For example: Charge = Theft; and Sentence = 6 years; all but 18 months suspended; 2 years probation):	
<u>Unlawful Poss. Sched. Drugs — heroin (Class C)</u>	<u>All-suspended; 2 yrs probation</u>
<u>Unlawful Poss. Sched. Drugs — cocaine base (Class C)</u>	<u>All-suspended; concurrent</u>

- I was convicted of these charge(s) following:
☒ Court acceptance of my plea(s) of guilty or nolo contendere
☐ A Jury Trial
☐ A Non-Jury (Bench) Trial

8. I was found not criminally responsible by reason of insanity following:

- ☐ Court acceptance of my plea(s) of guilty or nolo contendere
- ☐ A Jury Trial
- ☐ A Non-Jury (Bench) Trial

9. [Answer the following only if you had a Jury Trial or a Bench Trial]

- ☐ I testified at the trial
- ☐ I did not testify at the trial

10. At the time of the trial or plea(s) in my case:

- ☒ I was represented by Attorney William G. Bart (Lori Bart), Esq., Bar #6299
- ☐ I was not represented by an attorney.

11. Are you asking the court to assign an attorney to represent you in this Post-Conviction Review?

- ☒ Yes
- ☐ No

(If you answered "Yes" to question 11, then (a) you must fill out a Motion for Determination of Indigency and Assignment of Counsel [Form No. CR-032]; (b) if you are in jail/prison you must also obtain a certificate from that jail/prison as to the amount of money or securities on deposit to your credit in any account in that institution; and (c) file both documents with this petition)

B. RESTRAINT OR IMPEDIMENT (15 M.R.S. § 2124)

"Restraint or Impediment" refers to how the Criminal Judgment or post-sentencing proceeding you are challenging presently affects your life or will affect your life in the future.

Check only the box(es) that apply to you.

☒ 1. The Criminal Judgment I am challenging is causing me a **PRESENT DIRECT RESTRAINT OR OTHER IMPEDIMENT** because:

- ☐ I am incarcerated at (name of jail/prison) _____
- ☒ I am on probation, parole, or other conditional release sentence; 2-yr probation (Sept. 2021–Sept. 2023)
- ☐ I was sentenced to an unconditional discharge
- ☐ The jail/prison sentence that I received was completely satisfied at the time the sentence was imposed by the court because of credit for time that I had already earned
- ☐ My sentence to jail/prison, probation, parole or other conditional release must be served in the future because I am presently on bail while my appeal of this Criminal Judgment is pending
- ☐ My sentence to jail/prison, probation, parole or other conditional release must be served in the future because I must serve another sentence first
- ☐ I was ordered to pay a fine or restitution in my case, but I have not fully paid that fine or restitution
- ☐ I was sentenced to perform community service work in my case, but I have not fully completed that work
- ☐ The Criminal Judgment is a juvenile disposition, which restrains or impedes me in the following way: _____

- ☐ I am committed to the Maine Department of Health and Human Services because I was found not criminally responsible by reason of insanity. **I understand that I cannot use this petition for post-conviction review to ask to be released or discharged from an institutional inpatient residence.**

- ☐ 2. The Criminal Judgment is causing me a **FUTURE RESTRAINT OR OTHER IMPEDIMENT** because I am presently serving a jail/prison sentence resulting from another case and, after that, I will be committed to the Maine Department of Health and Human Services as a result of being found not criminally responsible by reason of insanity in the Criminal Judgment that I am challenging. **I understand that I cannot use this petition for post-conviction review to ask to be released or discharged from an institutional inpatient residence.**
- ☐ 3. The Criminal Judgment is causing me a **PRESENT INDIRECT RESTRAINT OR OTHER IMPEDIMENT** because:
- ☐ After I was convicted of the crime(s) in the Criminal Judgment that I am challenging, I was convicted of a new crime and sentenced to jail/prison; **AND**
I received a longer sentence for the new crime than what I otherwise would have received because of the Criminal Judgment I am challenging, **AND**
Both the crime(s) in the Criminal Judgment I am challenging and the new crime are punishable by a sentence of a year or more in prison (*Class A, B or C crimes*)
- ☐ After I was convicted of the crime(s) in the Criminal Judgment that I am challenging, I was convicted of a new crime and sentenced to jail/prison; **AND**
By law, the new crime for which I am serving a sentence required proof that I was convicted of the crime(s) in the Criminal Judgment that I am challenging, **AND**
The crime(s) in the Criminal Judgment that I am challenging is punishable by one year or more in prison (*Class A, B or C crime*), and the new crime for which I have been convicted is either
- ☐ Punishable by one year or more in prison (*Class A, B or C crime*), or
- ☐ Was committed in another state or federal jurisdiction and is classified in that jurisdiction as a felony or an infamous crime
- ☐ The Criminal Judgment I am challenging is based on my plea of guilty or nolo contendere, which was accepted by the trial court on or after March 31, 2010; **AND**
I was represented by an attorney at the time of my plea in that case; **AND**
I was not a citizen of the United States; **AND**
As a result of my plea, I am subject to the following pending deportation proceeding under federal immigration law
- ☐ Place of deportation proceeding _____
- ☐ Date of deportation proceeding _____
- ☐ 4. The post-sentencing proceeding [15 M.R.S. § 2121(2)] I am challenging that impedes me in regard to my incarceration or its length is: _____

I understand that I **cannot** challenge a court proceeding or administrative action that is excluded under the statutory definition of “post-sentencing proceeding.”

C. GROUNDS FOR RELIEF (15 M.R.S. § 2125). The Criminal Judgment I am challenging or the sentence I received is unlawful or unlawfully imposed, or the impediment to me that resulted from the post-sentencing proceeding is unlawful, as a result of the following error(s) or ground(s) for relief in my case. **[CAUTION: If you fail to set forth any grounds for relief in your Petition, you may be prevented from presenting them at a later date]**

Brady/Napue — State's Written Admission of Fabricated Charges

1. Ground One:

AAG Anton admitted in writing (Nov. 6, 2025, GCF #25-222) that factual

Supporting **FACTS:** basis for all 3 Class A Trafficking charges was an 'inadvertent error.'

Those false charges coerced plea. State discovery: witness statements

marked 'DOES NOT EXIST.' Plea induced by charges State now admits had
no factual basis. Brady v. Maryland; Napue v. Illinois. (See Exh. C, B.)

2. Ground Two: **Fourth Amendment / Franks v. Delaware — False Warrant Affidavit; Master Key Entry**

Supporting FACTS:

Officer Shannon Ferrah signed warrant affidavit at 12:00 PM Aug. 2, 2018.
BPD CAD logs: Ferrah did not arrive until 12:56:10 PM — 56 min. after swearing
to personal observations impossible at that time. Entry made w/ BHA master key;
BHA Key Log: no authorized entry Aug. 2, 2018 (Exh. F). No warrant shown on two
video demands (Exh. E). Warrant facially invalid; evidence suppressed as fruit.

3. Ground Three: **IAC (Strickland) — All 4 Attorneys Concealed Video; Billed State; Filed No Motions**

Supporting FACTS:

Attorneys Harris, Johnson, Willey, and Bart each reviewed cruiser video and billed
MCILS for review (Exh. G, Aug. 2024 from Audit Dir. Stephen Brochu). Each told
Petitioner video did not exist. Video obtained Feb. 21, 2024 (FOAA). Shows: illegal
stop; Bailey v. United States, 568 U.S. 186 (2013) violation; master-key entry;
refusal to produce warrant x2; unconsented strip search of wife. No motions filed.

4. Ground Four: **Involuntary Plea (Boykin / M.R.U. Crim. P. 11) — Unmedicated; 30-min Ultimatum**

Supporting FACTS:

Sept. 20, 2021 hearing was mental-health status conference, not a plea hearing.
Court order of July 29, 2021 required medical stabilization before any plea.
Petitioner unmedicated 42+ days in violation of that order (9 documented mental
health disabilities; Exh. K). AAG Horn: surprise 30-min ultimatum threatening 4-yr
mandatory. Counsel filed no continuance; did not invoke court order; no ADA request.
TruNarc field test: INCONCLUSIVE (Exh. H) — no factual basis for 'heroin' plea.
under M.R.U. Crim. P. 11(b)(2). Plea void ab initio. (Grounds V & VI in PCR.)

D. WAIVER OF GROUNDS FOR RELIEF (15 M.R.S. § 2128)

Please answer the following questions:

1. Did you appeal the Criminal Judgment or the post-sentencing proceeding you are challenging in this Petition to the Maine Supreme Judicial Court or any other court?
☐ Yes
☒ No
2. If you answered “Yes” to question 1, did you raise the same errors or grounds for relief in your appeal that you are now raising in this Petition?
☐ Yes
☐ No
3. If you answered “No” to question 2, please explain why you did not raise the same errors or grounds for relief in your appeal? _____

4. Have you previously filed a petition for post-conviction review regarding the Criminal Judgment or post-sentencing proceeding that you are challenging in this Petition?
- ☐ Yes
- ☐ No
5. If you answered “Yes” to question 4, did you raise any of the same errors or grounds for relief in your previous petition that you have raised in this Petition?
- ☐ Yes
- ☐ No
6. If you answered “No” to question 5, please explain why you could not have raised those same errors or grounds for relief in your earlier petition?
- This is Petitioner's first petition for post-conviction review.
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E. EXHAUSTION OF REMEDIES (15 M.R.S. § 2126)

If you are challenging the Criminal Judgment, please answer the following questions:

1. Did you file any motions in the trial court challenging the Criminal Judgment that you are challenging in this Petition? *(For example: motion for acquittal; motion for a new trial; motion for correction or reduction of sentence)*
- ☐ Yes
- ☐ No
2. If you answered “Yes” to question 1, what were the motions; what was the result of each motion; and what was the date of each result? _____
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-
3. Did you appeal the Criminal Judgment you are challenging in this Petition to the Maine Supreme Judicial Court?
- ☒ Yes
- ☐ No
4. If you answered “Yes” to question 3, what was the decision of the Maine Supreme Judicial Court and the date of that decision? _____
-
-
5. Did you apply to the Maine Supreme Judicial Court for permission to appeal your sentence in the Criminal Judgment you are challenging in this Petition?
- ☐ Yes
- ☐ No
6. If you answered “Yes” to question 5, what was the decision of the Maine Supreme Judicial Court and the date of that decision? _____
-
-

7. Did you file a petition for clemency (pardon) to the Governor of Maine related to the Criminal Judgment you are challenging in this Petition?

- ☐ Yes
☐ No

8. If you answered “Yes” to question 7, what was the Governor’s decision and the date of that decision?
X

9. Did you file a petition for a Writ of Habeas Corpus in the United States District Court related to the Criminal Judgment you are challenging in this Petition?

- ☐ Yes
☒ No

10. If you answered “Yes” to question 9, answer each of the following questions:

- a. Date your petition for a Writ of Habeas Corpus was filed: _____
b. The U.S. District Court’s decision: _____
c. Date of U.S. District Court’s decision: _____
d. U.S. District Court’s Docket Number: _____
e. If you appealed the decision of the U.S. District Court to the First Circuit Court of Appeals, what was the decision and date of the decision of that appellate court: _____

11. What other remedies did you seek related to the Criminal Judgment you are challenging in this Petition?
Maine Board of Bar Overseers complaint GCF #25-222 (2025); dismissed April 9, 2026 on technical grounds. Maine Human Rights Commission housing

_____ complaints (civil matter). Neither challenges the criminal judgment.

If you are challenging the post-sentencing proceeding, please answer the following questions:

12. Did you seek relief by means of a court proceeding regarding the post-sentencing proceeding you are challenging in this petition?

- ☐ Yes
☐ No

13. If you answered “Yes” to question 12, what was the relief you sought; in what court did you seek it; what was the result; and what was the date of the result? _____

14. Did you seek relief by means of administrative action regarding the post-sentencing proceeding you are challenging in this petition?

- ☐ Yes
☐ No

15. If you answered “Yes” to question 14, what was the name of the administrative agency; what was the agency’s decision; and what was the date of the decision? _____

16. If you answered “Yes” to question 12 or 14, did you appeal from the post-sentencing proceeding to the Maine Supreme Judicial Court or any other court?

- ☐ Yes
☐ No

17. If you answered “Yes” to question 16, what was the decision of the appellate court and the date of that decision? _____

F. TIME FOR FILING (15 M.R.S. § 2128-B).

Please provide any dates for the following that apply regarding, the Criminal Judgment or post-sentencing proceeding that you are challenging in this Petition.

1. Please check and complete all the following that apply:

- ☒ Date of the Criminal Judgment or post-sentencing proceeding: September 20, 2021
☐ Date your appeal was decided: _____
☐ Date that a new law supporting one or more of your grounds for relief went into effect: _____
☒ Date that you learned about new facts supporting one or more of your grounds for relief: Feb. 21, 2024 (video, FOAA); Aug. 2024 (billing vouchers);
☒ Date of any final administrative action: April 9, 2026 — Oct. 7, 2025 (BHA key log); Nov. 6, 2025 (Anton letter); Board of Bar Overseers (GCF #25-222); Jan. 2026 (CAD/radio logs); Apr. 9, 2026 (BBO final response)

2. If you checked any of the boxes in 1, is this petition being brought more than one year after the most recent date listed by you?

- ☐ Yes
☒ No

3. If you answered “Yes” to question 2, please state why your petition was not brought within the required one-year period:

~~Not applicable — petition is timely (most recent predicate: Apr. 9, 2026; petition filed July 2026). To extent any earlier predicate argued untimely: Petitioner was legally disabled under 14 M.R.S. § 853 (nine mental health disabilities, 2018–2025); FOAA obstruction also delayed discovery. Full equitable tolling argument in attached verified Petition.~~

4. If you are subject to a pending deportation proceeding under federal immigration law, please complete the following:

a. Date that you discovered that deportation proceedings have been started against you: _____

~~Not applicable. Petitioner is a United States citizen.~~

b. Was your petition for post-conviction review brought more than 60-days after this date?

- ☐ Yes
☐ No

c. If you answered “Yes” to 4(b), please state why your petition was not brought within the required 60-day period: _____

G. CONCLUSION

Wherefore, I pray that the court grant me the following relief:

1. Vacate and set aside the September 20, 2021 judgment and all convictions in PENCD-CR-2018-03023.
2. Order suppression of all evidence seized Aug. 2, 2018 (unconstitutional search and seizure).
3. Dismiss the gabapentin count with prejudice (ex post facto — Me. PL 2019, ch. 487, eff. Oct. 15, 2019).
4. Appoint counsel pursuant to 15 M.R.S. § 2129 and M.R. Crim. P. 61(g).
5. Grant discovery and evidentiary hearing under 15 M.R.S. § 2130.
6. Grant such other and further relief as justice requires, including dismissal with prejudice or new trial.

Date: _____

Signature _____

Print name _____ Keith A. King

Address _____ P.O. Box 458, Kenduskeag, ME 04450

_____ (207) 299-6448